



British Railways (Mersey Railway Extensions) Act 1968

CHAPTER xxxv

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ELIZABETH II



1968 CHAPTER xxxv

An Act to empower the British Railways Board to construct works and to acquire lands; and for other purposes.
[26th July 1968]

WHEREAS by the Transport Act 1962 the British Railways Board (hereinafter referred to as "the Board") were established:

And whereas the Board are empowered under the Transport Act 1962 (inter alia), to provide railway services in Great Britain and in pursuance of such powers now provide a railway service beneath the river Mersey between the county borough of Birkenhead and other parts of the Wirral peninsula in the county palatine of Chester and the city of Liverpool and the construction of the works authorised by this Act would enable that service to be improved:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the town clerks of the county boroughs within which the said works will be constructed or the said lands are situated, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the British Railways (Mersey Railway Extensions) Act 1968.

Interpretation. 2.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject matter the same respective meanings and—

1845 c. 20. “the Act of 1845” means the Railways Clauses Consolidation Act 1845;

1863 c. 92. “the Act of 1863” means the Railways Clauses Act 1863;

1963 c. xviii. “the Act of 1963” means the British Railways Act 1963;

1965 c. xxi. “the Act of 1965” means the British Railways Act 1965;

1967 c. xxx. “the Act of 1967” means the British Railways Act 1967;

“the Board” means the British Railways Board;

“enactment” means any enactment, whether public, general or local, and includes any order, byelaw, rule, regulation, scheme or other instrument having effect by virtue of an enactment;

- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ the Minister ” means the Minister of Transport;
- “ the tribunal ” means the Lands Tribunal; and
- “ the works ” means the works authorised by Part II (Works) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment, as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works or lands shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

(4) Unless the context otherwise requires, any reference in this Act to a work identified by the number of such work shall be construed as a reference to the work of that number authorised by this Act.

3. The following Act and Part of Act, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

Incorporation
of Railways
Clauses
Acts.

The Act of 1845, except sections 7, 8, 9, 19, 20, 22 and 23 thereof, and Part I (relating to construction of a railway) of the Act of 1863:

Provided that—

- (i) for the purposes of the provisions of the Act of 1845 and the Act of 1863, as incorporated with this Act, the expression “ the company ” where used in the said incorporated provisions means the Board;
- (ii) the provisions of sections 18 and 21 of the Act of 1845 shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(a) by the provisions of Part II of the Public Utilities Street Works Act 1950;

1950 c. 39.

(b) by the provisions of section 33 (For protection of gas, water and electricity undertakers) of the Act of 1963, as incorporated with this Act; or

PART I
—cont.

(c) by the provisions of section 45 (For further protection of gas, water and electricity undertakers) of the Act of 1967, as incorporated with this Act.

Application
of Part I of
Compulsory
Purchase
Act 1965.
1965 c. 56.
1946 c. 49.

4.—(1) Part I of the Compulsory Purchase Act 1965 (except sections 4, 24 (5) and 27 thereof and paragraph 3 (3) of Schedule 3 thereto), in so far as it is applicable for the purposes of this Act and is not inconsistent with the provisions thereof, shall apply to the compulsory acquisition of land under this Act as it applies to a compulsory purchase to which Schedule 1 to the Acquisition of Land (Authorisation Procedure) Act 1946 applies and as if this Act were a compulsory purchase order under the said Act of 1946.

(2) Section 11 (1) of the Compulsory Purchase Act 1965 (which empowers the acquiring authority to enter on and take possession of land the subject of a notice to treat after giving not less than fourteen days' notice), as so applied, shall have effect as if for the words "fourteen days" there were substituted, in respect of the lands referred to in Schedule 1 to this Act, the words "three months" and, in respect of the lands referred to in Schedule 2 to this Act, the words "one month".

1845 c. 18.

(3) The Lands Clauses Consolidation Act 1845 shall not apply to the acquisition of land under this Act.

PART II
WORKS

Power to
make works.

5. Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the works hereinafter described with all necessary works and conveniences connected therewith:—

(Railway at
Liverpool.)

In the city of Liverpool—

Work No. 1 A railway (1 mile 1,748 yards in length) wholly in the city commencing by a junction with the Mersey Railway between Birkenhead and Liverpool below a point 150 yards south-west of the junction of Irwell Street and Mann Island and terminating by a junction with the Mersey Railway below a point 120 yards west of the junction of South John Street and Lord Street.

(Railway at
Birkenhead.)

In the county borough of Birkenhead—

Work No. 2 A railway (712 yards in length) wholly in the borough commencing by a junction with the Mersey Railway between Liverpool and West Kirby below a

point 95 yards north-east of the junction of Bridge Street and Hamilton Street and terminating by a junction with the Mersey Railway below a point 90 yards north-west of the junction of Argyle Street and Lorn Street.

PART II
—cont.

6. In the execution of Works Nos. 1 and 2, or any part thereof, the Board may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited plans to any extent not exceeding 10 feet upwards and to such extent downwards as may be found necessary or convenient.

Power to deviate.

7. Subject to the provisions of this Act, the Board may, for the purpose of constructing Work No. 1, enter upon, open, break up and interfere with so much of the surface of Lime Street and Moorfields in the city of Liverpool as is within the limits of deviation.

Power to open surface of streets.

8.—(1) In this section—

“local authority” means the council of a county, county borough or county district;

Power to make agreements in regard to Works Nos. 1 and 2.

“passenger transport authority” means an authority or body operating or being responsible for the provision, operation or co-ordination of passenger transport services or a local authority or any combination thereof; and

“passenger transport services” means services for the carriage of passengers by rail, road or water.

(2) The Board and any passenger transport authority may enter into and carry into effect agreements with respect to the construction, maintenance, use and operation of Works Nos. 1 and 2 or any part or parts thereof and as to any other matters incidental or subsidiary thereto or consequential thereon, including the defraying of or the making of contributions towards the cost of the matters aforesaid by the Board or by a passenger transport authority, or by the Board and a passenger transport authority jointly.

(3) Any such agreement may provide (inter alia) for the exercise by a passenger transport authority or the Board and a passenger transport authority jointly of all or any of the powers of the Board in respect of Works Nos. 1 and 2 or any part or parts thereof and for the transfer to and vesting in a passenger transport authority, or the Board and a passenger transport authority

PART II
—cont.

jointly, of Works Nos. 1 and 2 or any part or parts thereof together with the rights and obligations of the Board in relation thereto.

(4) The exercise by a passenger transport authority, or by the Board and a passenger transport authority jointly, of any of the powers of this Act shall be subject to the like provisions in relation thereto as would apply if those powers were exercised by the Board alone, and accordingly those provisions with any necessary modifications shall apply to the exercise of such powers by a passenger transport authority, or by the Board and a passenger transport authority jointly.

(5) Any payment made in pursuance of an agreement entered into under this section for the reimbursement of loan charges (not being a payment in respect of the liability for the redemption of a loan) shall be deemed to be an annual payment.

Underpinning
of houses
near works.

9. The Board at their own costs and charges may, subject as hereinafter provided, underpin or otherwise strengthen any house or building within 100 feet of any of the works and the following provisions shall have effect:—

1965 c. 56.

- (1) At least fourteen days' notice shall (except in case of emergency) be given to the owner, lessee and occupier of the house or building intended to be so underpinned or otherwise strengthened;
- (2) Each such notice shall be served in manner prescribed by section 30 of the Compulsory Purchase Act 1965, as applied by this Act;
- (3) If any owner, lessee or occupier of any such house or building shall, within ten days after the giving of such notice, give a counter-notice in writing that he disputes the necessity of such underpinning or strengthening, the question of the necessity shall be settled by arbitration;
- (4) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Board may, from time to time after the completion of such underpinning or strengthening, and during the execution of the work in connection with which such underpinning or strengthening was done, or within five years after the opening for traffic of that work, enter upon and survey such house or building and, after complying with the foregoing provisions of this section, do such further underpinning or strengthening as they may deem necessary or expedient;

PART II
—cont.

(5) The Board shall be liable to compensate the owner, lessee and occupier of every such house or building for any loss or damage which may result to them by reason of the exercise of the powers granted by this section, provided that the claim for compensation in respect of such loss or damage is made within six months from either the date upon which any such owner, lessee or occupier first discovers the loss or damage or the date by which he ought reasonably to have discovered it, whichever is the earlier;

(6) Nothing in this section nor any dealing with any property in pursuance of this section shall relieve the Board from the liability to compensate under section 10 (2) of the Compulsory Purchase Act 1965, as applied by this 1965 c. 56. Act or under any other enactment, in respect of loss or damage arising from the execution of any works, other than works of underpinning or strengthening authorised by this section;

(7) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Land Compensation Act 1961. 1961 c. 33.

10.—(1) In addition to the provisions of any enactments incorporated with or applied by this Act with respect to compensation for lands taken or injuriously affected, the Board shall make compensation to the owner, lessee and occupier of any land, house or building which shall be injuriously affected by reason of the working of Work No. 1 or Work No. 2 (including the working of lifts, escalators and any other works in connection therewith) notwithstanding that no part of the property of such owner, lessee or occupier is taken by the Board: Compensation for damage by working.

Provided that all claims for compensation under this section shall be made within two years from the date of the opening for public traffic of that portion of the works which is alleged to cause such injurious affection and, failing agreement, shall be settled by arbitration.

(2) An arbitrator under this section may, with the consent of all parties concerned, hear together any class or group of claims under this section.

11. The following provisions of the Act of 1963 are incorporated with, and form part of this Part of, this Act:— Incorporation of provisions of Act of 1963 relating to works.

Section 7 (Repair of roads where level not permanently altered); and

Section 17 (Use of sewers, etc., for removing water):

PART II
—cont.

1963 c. 38.

Provided that the expression “river board” where used in the said section 17 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act 1963 and the definition of “river board” in subsection (5) of the said section 17 shall be construed accordingly.

PART III

LANDS

Power to
acquire lands.

12.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

(3) The Board shall not under the powers of this section enter upon, take or use the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 29, 66, 67, 108, 136, 143, 225, 253, 254, 255, 257, 275, 277, 283 and 288 in the city of Liverpool or any part of those lands.

Power to
acquire
subsoil or
easements
only in
certain cases.

13.—(1) Notwithstanding anything in this Act, the Board may, for the purposes of constructing, maintaining, protecting, renewing and using the works, enter upon, take and use so much of the subsoil and under-surface of or may acquire such easements or rights as they may require in, under or over—

(a) any railway, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer; or

(b) any of the lands described in Schedule 1 to this Act;

without being obliged to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such entry, taking and using and the acquisition of any such easements or rights, describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Compulsory Purchase Act 1965, as applied by this Act, shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those provisions.

1965 c. 56.

PART III
—cont.

2) (a) If, in any case where the Board enter upon, take and use the subsoil and under-surface of, or require an easement or right in or under, any of the lands described in the said schedule, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and (subject to the provisions of this Act) the provisions of the Compulsory Purchase Act 1965, as applied by this Act, shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those provisions. 1965 c. 56.

b) Section 15 (Acquisition of part only of certain properties) of the Act of 1967, as incorporated with this Act, shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which that section applies.

14.—(1) In this section “ the specified lands ” means the lands referred to in Schedule 2 to this Act. Subsoil or easements only to be acquired under certain lands.

(2) The Board shall not acquire compulsorily under the powers of this Act any part of the surface of the specified lands, but they may, within the limits of lateral and vertical deviation prescribed by this Act in respect of Works Nos. 1 and 2, enter upon, take and use so much of the subsoil and under-surface of the specified lands as they may require for the purpose of constructing, maintaining, protecting, renewing and using the works, or acquire such easements and rights under the specified lands as they may require for the said purposes without in either case being obliged to acquire any greater interest in, under or over the specified lands, and may give notice to treat in respect of such entry, taking and using and the acquisition of such easements or rights, describing the nature thereof and (subject to the foregoing provisions of this section and to the other provisions of this Act) the provisions of Part I of the Compulsory Purchase Act 1965, as applied by this Act, shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those provisions.

(3) The Board shall not under the powers of this section except with the consent in writing of the Postmaster General (which consent shall not be unreasonably withheld) enter upon, take or use any part of the subsoil or undersurface of the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 226, 242, 243, 251 and 323 in the city of Liverpool or acquire any easement or right under any part of the said lands:

PART III
—cont.

Provided that nothing in this subsection shall prevent the acquisition by the Board of any estate, interest, title, easement or other right vested in any person other than the Postmaster General at any time subsisting under any part of the said lands.

Disregard of recent improvements and interests.
1965 c. 56.

15. In determining any question of disputed compensation under the Compulsory Purchase Act 1965, as applied by this Act, the tribunal shall not take into account—

- (a) any works executed, improvement or alteration made, or building erected after 5th December 1967; or
- (b) any interest in the land created after that date;

which in the opinion of the tribunal was not reasonably necessary and was executed, made, erected or created with a view to obtaining or increasing the compensation or purchase money.

Period for compulsory purchase of lands or easements.

16. The powers of the Board for the compulsory acquisition of the lands and easements which they are authorised to acquire by this Part of this Act shall cease on 31st December 1971.

Incorporation of provisions of Acts of 1963 and 1967 relating to lands.

17. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

- section 19 (Correction of errors in deposited plans and book of reference);
- section 24 (Extinction of private rights of way); and
- section 28 (As to cellars under streets not referenced):

The Act of 1967—

- section 15 (Acquisition of parts only of certain properties); and
- section 16 (Grant of easements by persons under disability).

PART IV

PROTECTIVE PROVISIONS

Incorporation of protective provisions of Acts of 1963, 1965 and 1967.

18. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

- section 33 (For protection of gas, water and electricity undertakers):

The Act of 1965—

- subsections (1) and (4) of section 34 (For protection of Postmaster General):

The Act of 1967—

PART IV
—cont.

section 35 (Crown rights) (except paragraph (b) of subsection (1) thereof);

section 45 (For further protection of certain gas, water and electricity undertakers) (except paragraph (3) thereof):

provided that in the said section 45 of the Act of 1967, as so incorporated—

(a) the reference in paragraph (2) thereof to section 11 (Underpinning of houses near works) of the Act of 1967 shall be construed as a reference to section 9 (Underpinning of houses near works) of this Act; and

(b) for the reference in paragraph (4) thereof to section 13 (Incorporation of provisions of Act of 1963 relating to works) of the Act of 1967 there shall be substituted a reference to section 11 (Incorporation of provisions of Act of 1963 relating to works) of this Act.

19. In particular, and without prejudice to the general law concerning the applicability of statutes to the Duchy of Lancaster, nothing in this Act contained shall extend or operate to authorise the Board to take, use, enter upon or in any manner interfere with any land, soil, water or any manorial rights or any other rights of whatsoever description belonging to Her Majesty in right of Her Duchy of Lancaster without the consent in writing of the Chancellor for the time being of the said duchy first had and obtained (which consent may be given either unconditionally or subject to such conditions and upon such terms as the said Chancellor shall deem necessary or appropriate) or take away, prejudice or diminish any estate, right, privilege, power or authority vested in or enjoyed or exercisable by Her Majesty, Her Heirs and Successors in right of Her said duchy. Saving rights of Duchy of Lancaster.

20. For the protection of the mayor, aldermen and burgesses of the county borough of Birkenhead (in this section referred to as "the corporation" and "the borough" respectively) the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect with reference to the exercise of the powers of this Act relating to the works to which this section applies:— For protection of Birkenhead Corporation.

(1) (a) In this section "highway" means a highway vested in or repairable or maintained by the corporation;

(b) The works to which this section applies are Work No. 2 and the works and conveniences connected therewith authorised by this Act:

(2) (a) The Board shall not under the powers of this Act enter upon, take or use any part of the lands delineated

PART IV
—cont.

on the deposited plans and described in the deposited book of reference and therein numbered 77 in the borough except as provided in sub-paragraph (b) of this paragraph;

- (b) The Board may subject to and in accordance with the provisions of section 13 (Power to acquire subsoil or easements only in certain cases) of this Act acquire such easements or rights in and under the said lands numbered 77 in the borough as they may require for the purpose of constructing Work No. 2:

Provided that—

(i) the Board shall not acquire any permanent easement in the surface of the said lands numbered 77 or in so much of the subsoil or undersurface of such lands as is higher than 25 feet above ordnance datum (Newlyn) but only such temporary rights as they may reasonably require for the purpose of constructing Work No. 2; and

(ii) before exercising their powers under this Act with respect to the surface of the said lands numbered 77 or so much of the subsoil or undersurface of such land as is higher than 25 feet above ordnance datum (Newlyn) the Board shall consult the corporation as to the extent of the surface and of such subsoil or undersurface which it may be reasonably necessary for the Board to occupy and no part of the surface of the said lands numbered 77 or of such subsoil or undersurface shall be occupied by the Board except to such extent and subject to such terms and conditions as may be agreed between the Board and the corporation or settled by arbitration:

- (3) Wherever in this section provision is made with respect to the consent of the corporation, such consent shall be in writing and may be given under the hand of the town clerk of the borough subject to such reasonable terms and conditions as the corporation may require, but shall not be unreasonably withheld:
- (4) In the construction of any part of the works to which this section applies under a highway, no part thereof shall (except with the consent of the corporation) be so constructed within 12 feet of the surface of the highway or so as to interfere with the provision of proper means of drainage of the surface of such highway:
- (5) The works to which this section applies so far as they involve any serious interference with the movement of traffic in any highway shall, after the commencement

thereof, be carried on, so far as reasonably practicable, as expeditiously as possible, and the Board shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:

- (6) The Board shall secure that so much of the works to which this section applies as is constructed under or so as to affect any highway shall be designed, constructed and maintained so as to carry the appropriate loading recommended, at the time of construction of such works, by the Minister for highway bridges:
- (7) It shall be lawful for the engineer or surveyor or other officer of the corporation duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works to which this section applies in, under or affecting any highway or which may affect any property of the corporation during the execution thereof, and the Board shall give to such engineer or surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of such works is attended with danger to any highway or to any shelter, refuge, sewer, drain, lamp column, traffic sign and apparatus connected therewith or work belonging to or under the jurisdiction or control of the corporation, the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:
- (8) The Board shall not alter, disturb or in any way interfere with any shelter, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith, or other property or work of the corporation or under the control of or repairable by the corporation or the access thereto, without the consent of the corporation and any alteration, diversion, replacement or reconstruction of any such shelter, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work which may be necessary shall be made by the corporation or the Board as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Board:
- (9) The Board shall not, except with the consent of the corporation, deposit any soil, subsoil or materials or stand any vehicle or plant on any highway so as to obstruct the use of such highway by any person or, except with the like consent, deposit any soil, subsoil or materials on any such highway except within a hoarding:

PART IV
—cont.

1959 c. 25.

- (10) All reasonable costs, charges and expenses incurred by the corporation in removing any soil deposited on any highway in contravention of this section shall be a debt due to the corporation and shall be paid by the Board to the corporation:
- (11) It shall not be lawful for the Board to place any hoardings on any part of any highway except for such period as may be necessary and then only in such manner as shall be reasonably necessary, and the provisions of the Highways Act 1959 relating to hoardings shall apply to any hoarding erected on any part of any highway and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:
- (12) The Board shall indemnify and hold harmless the corporation from all claims, demands, costs, expenses, damages or loss which may be made on or against them or which they may incur or have to pay or which they may sustain in consequence of the construction, use, maintenance, renewal or alteration of the works to which this section applies or of the failure or want of repair thereof or any subsidence caused by the construction thereof or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants:
- Provided that the corporation shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:
- (13) As soon as reasonably practicable after the completion of any part of the works to which this section applies, the Board shall furnish the corporation with a plan and section showing the position and level of such part of the works as constructed:
- (14) Any difference arising between the Board and the corporation under this section shall be settled by arbitration.

For protection
of Liverpool
Corporation.

21. For the protection of the lord mayor, aldermen and citizens of the city of Liverpool (in this section referred to as "the corporation" and "the city" respectively), the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect with reference to the

exercise of the powers of this Act relating to the works to which this section applies:—

- (1) (a) In this section “highway” means a highway vested in or repairable or maintained by the corporation;
(b) The works to which this section applies are Work No. 1 and the works and conveniences connected therewith authorised by this Act:

- (2) (a) The Board shall not under the powers of this Act acquire any permanent interest in the lands delineated on the deposited plans and described in the deposited book of reference and therein numbered 1 and 220 in the city or any buildings erected on such lands other than—

- (i) such easements under the said lands as may be required by the Board for the construction of the works to which this section applies within the limits of deviation relative thereto;

- (ii) such temporary interests as the Board may reasonably require to enable them to make use of the surface and subsoil of the said lands numbered 1 and 220 in the city as working sites for the purpose of constructing the works to which this section applies;

- (b) Before exercising their powers under this Act with respect to the surface of the said lands numbered 1 and 220 in the city, the Board will consult the corporation as to the extent of the surface of the said lands which it may be reasonably necessary for the Board to occupy as a temporary working site as aforesaid and as to the conditions under which such powers shall be exercised (including conditions as to reinstatement and the period within which reinstatement is to be completed after such time as the surface is no longer required for the said purposes) and the surface of such lands shall not be occupied and such powers shall not be exercised except to such extent and except in accordance with such conditions as may be agreed between the Board and the corporation or, failing such agreement, as may be determined by arbitration:

- (3) The Board shall not exercise the powers of section 7 (Power to open surface of streets) of this Act to enter upon, open, break up or interfere with any part of the carriageway of Lime Street or Moorfields in the city without the consent of the corporation which consent may be given subject to such conditions as the corporation consider reasonably necessary to avoid or reduce interference with traffic in such streets but such consent

PART IV
—cont.

shall not be unreasonably withheld and any question whether such consent is unreasonably withheld or whether any conditions imposed are reasonably necessary for the purpose aforesaid shall be determined by the Minister:

- (4) The entrances and exits in the city to and from any subway, booking hall or station in the city shall be so designed and of such extent as to secure the least practicable inconvenience to the public traffic in the adjoining highways and before the Board commence to construct such entrances or exits plans thereof shall be submitted to the corporation for their reasonable approval:

Provided that if the corporation do not within twenty-eight days from the submission to them of any such plans express in writing their approval or disapproval thereof they shall be deemed to have approved thereof:

- (5) In the construction of any part of the works to which this section applies under a highway, no part thereof shall (except with the consent of the corporation) be so constructed within 12 feet of the surface of the highway or so as to interfere with the provision of proper means of drainage of the surface of such highway:
- (6) The works to which this section applies so far as they involve any serious interference with the movement of traffic in any highway shall, after the commencement thereof, be carried on, so far as reasonably practicable, as expeditiously as possible, and the Board shall take all such steps as may be reasonably necessary to reduce so far as possible the period of such interference:
- (7) The Board shall secure that so much of the works to which this section applies as is constructed under or so as to affect any highway shall be designed, constructed and maintained so as to carry the appropriate loading recommended, at the time of construction of such works, by the Minister for highway bridges:
- (8) It shall be lawful for the engineer or surveyor or other officer of the corporation duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works to which this section applies in, under or affecting any highway or which may affect any property of the corporation during the execution thereof and the Board shall give to such engineer or surveyor or officer all reasonable facilities for such inspection and if he shall be of opinion that the construction of such works is attended with danger to any highway or

PART IV
—cont.

to any shelter, refuge, sewer, drain, lamp column, traffic sign and apparatus connected therewith or work belonging to or under the jurisdiction or control of the corporation, the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:

- (9) The Board shall not alter, disturb or in any way interfere with any shelter, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith, or other property or work of the corporation or under the control of or repairable by the corporation or the access thereto, without the consent of the corporation and any alteration, diversion, replacement or reconstruction of any such shelter, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work which may be necessary shall be made by the corporation or the Board as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Board:
- (10) The Board shall not, except with the consent of the corporation, deposit any soil, subsoil or materials or stand any vehicle or plant on any highway so as to obstruct the use of such highway by any person or, except with the like consent, deposit any soil, subsoil or materials on any such highway except within a hoarding:
- (11) All reasonable costs, charges and expenses incurred by the corporation in removing any soil deposited on any highway in contravention of this section shall be a debt due to the corporation and shall be paid by the Board to the corporation:
- (12) It shall not be lawful for the Board to place any hoardings on any part of any highway except for such period as may be necessary and then only in such manner as shall be reasonably necessary, and the provisions of the Highways Act 1959 relating to hoardings shall apply to any hoarding erected on any part of any highway and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section: 1959 c. 25.
- (13) The Board shall indemnify and hold harmless the corporation from all claims, demands, costs, expenses, damages or loss which may be made on or against them or which they may incur or have to pay or which they

PART IV
—cont.

may sustain in consequence of the construction, use, maintenance, renewal or alteration of the works to which this section applies or of the failure or want of repair thereof or any subsidence caused by the construction thereof or in consequence of any act or omission of the Board, their contractors, agents, workmen or servants:

Provided that the corporation shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

(14) As soon as reasonably practicable after the completion of any part of the works to which this section applies, the Board shall furnish the corporation with a plan and section showing the position and level of such part of the works as constructed:

(15) Wherever in this section provision is made with respect to the consent of the corporation, such consent shall be in writing and may be given under the hand of the town clerk of the city subject to such reasonable terms and conditions as the corporation may require, but shall not be unreasonably withheld:

(16) Any difference arising between the Board and the corporation under this section (other than under paragraph (3) thereof) shall be settled by arbitration.

For protection
of Mersey
Tunnel Joint
Committee.

22. For the protection of the Mersey Tunnel Joint Committee (in this section referred to as "the joint committee") the following provisions shall, unless otherwise agreed in writing between the Board and the joint committee, apply and have effect:—

(1) In this section—

"the tunnel" means the tunnel authorised by the Mersey Tunnel Acts 1925 to 1933 and any works connected therewith for the maintenance of which the joint committee are responsible;

"tunnel property" means the tunnel and any lands occupied by the joint committee for the purpose of their functions under the Mersey Tunnel Acts 1925 to 1968;

"the specified works" means so much of the works as may be situated upon, across, under or over or within 50 feet of tunnel property and includes the construction, maintenance and renewal of such works;

"the engineer" means an engineer to be appointed by the joint committee;

"plans" includes sections, drawings and particulars:

(2) The Board shall not under the powers of this Act acquire compulsorily any tunnel property but they may in accordance with the provisions of this Act acquire such easements and rights as they may reasonably require for the purposes of the specified works in the subsoil or undersurface of any such property within the limits of deviation:

(3) Notwithstanding the provisions of section 6 (Power to deviate) of this Act, the Board shall not in executing so much of the specified works as is below tunnel property deviate upwards from the level of such works shown on the deposited sections to any greater extent than 3 feet nor where the specified works are constructed beneath the joint committee's North John Street Ventilating Station in the city of Liverpool deviate laterally in a north-westerly direction from the centre line of the works as shown on the deposited plans to any greater extent than 12 feet:

(4) The Board shall before commencing the specified works (other than works of maintenance or repair) furnish to the joint committee proper and sufficient plans thereof for the reasonable approval of the joint committee and shall not commence the specified works until plans thereof have been approved in writing by the joint committee or settled by arbitration:

Provided that if within fifty-six days after such plans have been furnished to the joint committee the joint committee shall not have intimated their disapproval thereof and the grounds of their disapproval, they shall be deemed to have approved the same:

(5) Upon signifying their approval or disapproval of the plans the joint committee may specify any protective works, whether temporary or permanent, or make any reasonable requirements as to the manner of construction of the specified works, which in their opinion should be carried out or complied with either before the commencement or during the construction of the specified works to ensure the safety and stability and the safe and efficient use of tunnel property and such of the protective works so specified and the requirements so made as may be reasonably necessary for the purposes aforesaid shall be constructed or complied with by the Board to the reasonable satisfaction of the joint committee:

Provided that if any such protective works involve modification to or interference with tunnel property,

PART IV
—cont.

- the joint committee may, if they so elect, themselves construct such protective works and recover from the Board the reasonable cost of so doing:
- (6) The Board shall give to the joint committee twenty-eight days' notice of their intention to commence the specified works and, except in emergency (when they shall give such notice as may be reasonably practicable), also of their intention to carry out any works for the repair or maintenance of the specified works:
 - (7) The specified works shall when commenced be carried out with all reasonable dispatch in accordance with the plans approved or deemed to have been approved or settled as aforesaid and in such manner as to cause as little damage to tunnel property as may be and so far as is reasonably practicable so as not to interfere with or obstruct the free, uninterrupted and safe user of the tunnel and the traffic therein, and if any damage to tunnel property or any such interference or obstruction shall be caused or take place by reason of the specified works the Board shall, notwithstanding any such approval as aforesaid, forthwith make good such damage and pay to the joint committee all reasonable expenses to which they may be put and reasonable compensation for any loss which they may sustain, by reason of any such damage, interference or obstruction other than damage, interference or obstruction caused by the neglect or default of the joint committee, their servants or agents:
 - (8) The Board shall at all times afford reasonable facilities to the engineer for access to the specified works during their construction and shall supply him with all such information as he may reasonably require with regard to such works or the method of construction thereof:
 - (9) The joint committee shall at all times afford reasonable facilities to the engineer of the Board for access to any works carried out by the joint committee as provided by paragraph (5) of this section during their construction and shall supply him with such information as he may reasonably require with regard to such works or the method of construction thereof:
 - (10) If any alterations or additions, either permanent or temporary, to tunnel property shall be reasonably necessary during the construction of the specified works or during a period of twelve months after completion thereof, in consequence of the construction of the specified works, such alterations and additions may

effected by the joint committee after not less than twenty-eight days' notice (or in case of emergency such notice as may be reasonably practicable) has been given to the Board and the Board shall pay to the joint committee the reasonable cost thereof, including, in respect of permanent alterations and additions, a capitalised sum representing the increased or additional cost of maintaining and, when necessary, renewing any such alterations or additions:

- (11) The Board shall repay to the joint committee all costs, charges and expenses reasonably incurred by the joint committee—

(a) in constructing any protective works under the provisions of paragraph (5) of this section including, in respect of any permanent protective works, a capitalised sum representing the increased or additional cost of maintaining and renewing such works;

(b) in respect of any special traffic controls within the tunnel which may in the opinion of the joint committee require to be imposed and which may be due to the construction or failure of the specified works:

- (12) Any additional expense which the joint committee may reasonably incur, after giving twenty-eight days' notice to the Board, in altering, reconstructing or maintaining tunnel property in pursuance of any power existing at the passing of this Act by reason of the existence of the specified works shall be repaid by the Board to the joint committee:

- (13) The Board shall be responsible for and make good to the joint committee all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the joint committee—

(a) by reason of the specified works or the failure thereof; or

(b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors or others whilst engaged upon the specified works;

and the Board shall effectively indemnify and hold harmless the joint committee from and against all claims and demands arising out of or in connection with the specified works or any such failure, act or omission as aforesaid and the fact that any act or thing may have been done by the joint committee on behalf of the

PART IV
—cont.

Board, or in accordance with plans approved by the joint committee, or in accordance with any requirements of the joint committee, shall not (if it was done without negligence on the part of the joint committee or of any person in their employ or of their contractors or agents) excuse the Board from any liability under the provisions of this section:

Provided that the joint committee shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (14) The Board shall not, without the consent of the joint committee, which shall not be unreasonably withheld—

1965 c. 56.

(a) exercise the powers of subsection (3) of section 11 of the Compulsory Purchase Act 1965, as applied by this Act, to probe or bore to ascertain the nature of the soil on or over any tunnel property; or

(b) use or interfere with any sewer or drain of the joint committee under the powers of section 17 (Use of sewers etc. for removing water) of the Act of 1963 as incorporated in this Act:

- (15) Any difference arising between the Board and the joint committee under this section (other than a difference as to the meaning or construction of this section) shall be referred to and settled by arbitration:

Provided that, in settling any difference under this section, the arbitrator shall have regard to the need for the joint committee to ensure the maintenance of a free flow of traffic in the tunnel and to secure the safety of persons and vehicles therein.

PART V

GENERAL

Saving for town and country planning.
1962 c. 38.

23. The provisions of the Town and Country Planning Act 1962, and any restrictions or powers thereby imposed or conferred in relation to land, shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act.

Arbitration.

24. Where under this Act any difference (other than a difference to which the provisions of the Compulsory Purchase Act 1965, as applied by this Act, apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed

—between the parties or, failing agreement, to be appointed on the application of either party (after notice in writing to the other) the President of the Institution of Civil Engineers.

PART V
—cont.

25. All costs, charges and expenses of and incident to the Costs of Act. preparing for, obtaining and passing of this Act, or otherwise in connection thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue.

SCHEDULES

Section 13.

SCHEDULE 1

DESCRIBING LANDS IN RESPECT OF WHICH SUBSOIL OR EASEMENTS
MAY BE TAKEN AS PROVIDED BY SECTION 13 (POWER TO ACQUIRE SUBSOIL
OR EASEMENTS ONLY IN CERTAIN CASES) OF THIS ACT

Area (1)	No. on deposited plans (2)
Work No. 1— City of Liverpool	1, 90, 92, 97 to 107, 109 to 126, 130 to 135, 137 to 142, 144 to 150, 220 to 223, 264 to 273, 276, 280 and 306.
Work No. 2— County borough of Birkenhead	1 and 77.

Section 14.

SCHEDULE 2

LANDS REFERRED TO IN SECTION 14 (SUBSOIL OR EASEMENTS ONLY TO BE
ACQUIRED UNDER CERTAIN LANDS) OF THIS ACT

Area (1)	No. on deposited plans (2)
Work No. 1— City of Liverpool	2 to 6, 8, 10, 12 to 28, 30 to 49, 51 to 65, 68 to 89, 91, 93, 94, 127 to 129, 151, 152, 154 to 173, 175 to 201, 203 to 209, 211 to 219, 223a to 224, 226 to 252, 256, 258, 260 to 262, 274, 278, 279, 282, 284 to 287, 289 to 305, 307 to 319 and 321 to 324.
Work No. 2— County borough of Birkenhead	2, 3, 5 to 8, 10 to 14, 16 to 76 and 78 to 89.

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